

Sangram Singh Yadav v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 27 November 2024 · 2024:AHC:186195-DB · Writ - C No. - 23279 of 2024 · **Writ dismissed as infructuous; parties agreed the assessed amount had already been adjusted**

HEADNOTE

Clause 6.8 of the U.P. Electricity Supply Code, 2005 entitles the consumer to object to a notice of provisional assessment and to a hearing so that those objections are dealt with. Noting the objections and confirming the provisional notice without applying the mind is not a technical error. On that footing the 17.05.2024 final assessment was permitted to be withdrawn and redone strictly in accordance with law. A later complaint that a fresh notice and a fresh final assessment arrived in one envelope, with the final order dated before the hearing date, was stayed. The writ was thereafter dismissed as infructuous when counsel agreed the assessed amount had already been adjusted. Quantum and the validity of the second assessment were not decided.

FACTUAL SUMMARY

Sangram Singh Yadav sought certiorari against a final assessment dated 17 May 2024 and a prior notice dated 14 March 2024 of respondent No. 4, the Executive Engineer of Purvanchal Vidyut Vitran Nigam Ltd., and mandamus against recovery of Rs. 5,12,498. He had filed detailed objections. Those were noted in the final order but, he said, not dealt with. The Executive Engineer later admitted in a short counter-affidavit that the assessment was not in accordance with law, calling it a technical error.

After that assessment was permitted to be withdrawn, the petitioner received in one envelope a notice dated 9 August 2024 inviting objections and a final assessment dated 27 August 2024. The provisional notice had fixed 30 August 2024 for hearing. Stay of the later assessment was granted. Managing Director affidavits referred to an SOP of 16 April 2024, a charge-sheet to the Executive Engineer, and monitoring of assessments. On 27 November 2024 the parties agreed the amount had already been adjusted.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Clause 6.8 requires the assessing officer to deal with objections at a hearing; confirming the provisional notice without applying the mind is not a technical error, and such an assessment may be withdrawn and redone

QUESTION

Does a final assessment under Clause 6.8 stand where the assessing officer notes the consumer's objections to the provisional assessment but confirms that notice without dealing with them, the defect being explained as a technical error?

HOLDING

No. On 05.08.2024 the Division Bench (Manoj Kumar Gupta and Manish Kumar Nigam, JJ.) found sufficient force in the submission that the Assessing Officer had noted the petitioner's objections to the 14.03.2024 provisional assessment but had not dealt with them and had confirmed the notice. Clause 6.8 specifically provides that the consumer is entitled to file objection against the notice of provisional assessment and to a hearing so that those objections are dealt with. Respondent No. 4 admitted the 17.05.2024 final assessment was not in accordance with law and called it a technical error; the Court declined that explanation as total non-application of mind. Respondent No. 4 was permitted to withdraw the impugned assessment and proceed afresh strictly in accordance with law. The Managing Director was required to file a personal affidavit. On 27.11.2024 the writ was dismissed as infructuous after counsel agreed the assessed amount had already been adjusted. ¶ 3-7

QUALIFIER

The 05.08.2024 order permitted withdrawal rather than a formal quash. The 27.11.2024 disposal did not rest on Clause 6.8.

FLAG Source PDF compiles orders of 24.07.2024, 05.08.2024, 29.08.2024, 10.09.2024, 01.10.2024, 18.10.2024, 12.11.2024, 26.11.2024 and 27.11.2024 (neutral citation on the last). Paras 3-7 are of the 05.08.2024 order (Gupta and Nigam JJ.). Coram of the 27.11.2024 disposal is Birla and Srivastava JJ. The 29.08.2024 order refers to the Electricity Supply Code, 2006 (catalog key remains UP-2005::6.8). SOP dated 16.04.2024 addressed theft and unauthorised use; this Court applied Clause 6.8.

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion Clause 6.8 is not satisfied by reciting that objections were filed and then confirming the provisional notice. The assessing officer must apply his mind and deal with the objections at a hearing. An admission that the final order is not in accordance with law, explained as a technical error, does not save total non-application of mind. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OR QUANTUM OF THE RS. 5,12,498 ASSESSMENT

The 17.05.2024 order was permitted to be withdrawn; the writ was later dismissed as infructuous after the amount was said to have been adjusted. ¶ 1-2

NOT DECIDED — WHETHER SERVING THE 09.08.2024 PROVISIONAL NOTICE AND THE 27.08.2024 FINAL ASSESSMENT IN ONE ENVELOPE, AND DATING THE FINAL ORDER BEFORE THE 30.08.2024 HEARING, VIOLATED CLAUSE 6.8

Raised by supplementary affidavit; stay of the 27.08.2024 order was granted and the dispatch register called for; not decided before the writ became infructuous. ¶ 1-2

NOT DECIDED — WHETHER THE DEMAND WAS A THEFT ASSESSMENT (CLAUSE 8.1) OR UNAUTHORISED USE (CLAUSE 6.8)

The 05.08.2024 order applied Clause 6.8. The SOP of 16.04.2024 was described as covering theft and unauthorised use. The Court did not classify the demand. ¶ 3